

Date: 12-08-2025

To,

A-33-36, Malkaganj, Delhi

Sub:- Acknowledgement of your letter no - dated 2025-08-12

Dear Mahesh Kumar Grover,

Your letter has been received. (01 Page) For future communication please refer to the correspondence computer no. 2972994

Regards,
NARENDER SINGH
IFC (L&DO)-JSA-(Narendra Singh)

Date: 12th Aug 2025

To:
Mr. Rajeev Kumar Das
Deputy Land & Development Officer
Nirmal Bhawan
New Delhi – 110011

Subject: Response to L&DO Letter No. PS-III / A-33 to 36, Malkaganj / 254 Dated 22.07.2025

Dear Sir,

I write in response to your letter concerning the submission of a valuation report for assessing the 50% unearned increase and EGR related to my property at A-33 to 36, Malkaganj, Delhi – 110007.

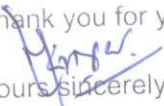
- I submitted an application for substitution of ownership on 17.07.2021 for the jointly held property with me and my 5 brothers namely Ramesh Kumar, Satish Kumar, Naresh Kumar, Suresh Kumar, and Rakesh Kumar.
- All substitution formalities, including proofreading, were completed by 13.07.2024. However, nearly one year later (22.07.2025), that request for a valuation report has been received.
- A Release (Relinquishment) Deed dated 05.10.1999—involving nominal consideration—was executed amongst me and 4 brothers namely Satish kumar, Naresh kumar, Suresh Kumar and Rakesh Kumar as part of a family settlement and not a sale. The monetary transaction was symbolic, assuming to be binding and the deed did not transfer ownership to any third party. This is supported by subsequent family agreement involving all brothers (including Ramesh Kumar) which was decreed by Delhi High Court and registered at Rohtak. (Filed in this substitution application)
- As per the Delhi High Court order in Gurbachan Singh v. Raghubir Singh (AIR 1989 Delhi Page 117), which I found through online search, a relinquishment deed executed between co-heirs, even for consideration, does not constitute a sale deed since the transaction involves release of share without intent to sell.
- This legal position is reflected in the Land & Development Office's Standard Operating Procedure for mutation/substitution, which I also reviewed online and expressly listing "Registered Relinquishment Deed (With / Without Consideration)" as an accepted document for substitution, thereby treating it differently from a sale deed.
- Legal counsel and official guidelines confirm that a relinquishment deed—even with consideration—is not treated as a sale deed, given there is no intent to sell. This position aligns with the Land & Development Office's Standard Operating Procedure for substitution and mutation applications, which recognizes registered relinquishment deeds as valid documents for substitution.

Following receipt of your letter, I sought legal advice and subsequently met you in person, during which you advised me to submit this written clarification for further review.

I respectfully request reconsideration of the valuation report requirement, in light of the fact that the 1999 deed was executed as part of a family settlement—not a sale—and is recognized under existing L&DO guidelines. Therefore, I believe a valuation report may not be necessary in this context.

PTO

Thank you for your kind attention.


Yours sincerely,

Mahesh Kumar Grover

9810884590

drmaheshgrover@gmail.com

rajeevk.das@gov.in

8-10-2025 1Pm

Online office not working.

Dr Neelu Grover had gone and deposited this document in person

Dated: 7.10.2025

To,

Mr. Rajeev Kumar Das

Deputy L&DO

Nirman Bhawan

New Delhi-110011

Subject: Substitution of my house A-33 to 36 Malka Ganj Delhi-110007 Property ID 44836

Dear Sir,

I along with my wife had met you on Wednesday 1st October 2025 wherein you had asked us to furnish some document in support of my contention. I am enclosing the following two documents obtained from L&DO website

1. Office Order No. 5/84 LDO No 24(6)/76-CDN(Pt)-(82) Dated 20.06.1984

2. Office Order No. 12/2009 LDO No 24(780)/08/CDN/313 Dated 31/08/2009

Both the orders infer that transfer of share of one Co-lessee to another Co-Lessee will be treated as relinquishment and not as sale for the purpose of substitution.

Thanking you.

Yours faithfully

Mahesh Kumar Grover

A 33-36, Malka Ganj, Delhi 110007

Property ID: 44836

Mobile: 9810884590

Email: drmaheshgrover@gmail.com



16/08/10/2025

Government of India
Ministry of Works & Housing
Land & Development Office
Nirman Bhavan,

No. 24(6)/76-CDN(Pt)-(82)

New Delhi,
Dated 20.4.76

OFFICE ORDER NO. 5/76

Subject:- Sale between the co-lessees instructions thereof.

Attention is invited to the office order No. 2004(1) dated 30.3.64 and policy Coll No. 7(8)/66 dated 15.12.66 and also to the consolidated office order No. 21/76 dated 31.3.76 on the above subject.

The matter has been reconsidered by the Land and Development Officer in consultation with Assistant Legal Adviser and it has been decided that the existing practice that transfer of share of one co-lessee to another co-lessee will not be treated as 'Sale' should be continued to be followed. However, if subsequently in future a permission for sale of a part of the property is issued it will have to be made clear in the sale permission letter that any future sale of the part of the part to the same person will be treated as sale and will not be covered under the existing office orders.

The old cases may be finalised accordingly.

(Signature)
(A.C. Sharma)
Legal Officer (Sr.)

All Officers/Sections.

Government of India
Ministry of Urban Development
Land & Development Office
Nirman Bhawan, New Delhi.

LDO No. 24(780)/08/CDN/ 313

Dated. 31/8/09

Office Order No. 12/2009

Sub: Relinquishment of share in favour of other Co-owner through a Registered Relinquishment Deed, in case property acquired jointly through Sale Deed.

There are cases where the Lessees get a Leased property mutated in their favour jointly on the basis of Sale Deed. One co-lessee relinquishes his/her share in favour of other co-lessee by way of executing a registered Relinquishment Deed. The validity of Relinquishment Deed for the purpose of substitution has been examined in consultation with M/o Law & Justice. On the basis of some decisions of Supreme Court, M/o Law & Justice have opined that the relinquishment of the share by one of a joint owner in favour of the other co-owner through a registered relinquishment deed.

It has, therefore, been decided to accept the Relinquishment deed as a legally valid in case a coparcener relinquishes his/her share in favour of other co-owner of the Leased property for the purpose of substitution.


(Surendra Singh)
Dy. Land & Development Officer

To

- 1 All Officers & Sections
- 2 I-IC with Hindi version for putting on the L&DO's web site
- 3 CDN Guard file

To

Mr Rajeev Kumar Das
Dy L&DO
Sankalp Bhawan
New Delhi

Subject: Substitution of my property A-33 to 36 Malka Ganj Delhi-110007 Property ID 44836

Sir

I have been visiting your office almost every month ever since I filed above mentioned substitution on 17.07.2021. Last time I visited your office on 2.01.2026 & I was surprised when I was told that clause for Misuse on lease hold has not been removed.

In response I have to state that I had already submitted to your office on 27.05.2023 that I am working as a consultant medical officer at WUS Health Centre University of Delhi and am using part of my residence (465.93 sq ft) as Part-time residence cum clinic.

I had also stated in my reply that residence cum clinic of this size is a residential activity as per L&DO rules & also as per law of the land. This fact was also discussed and agreed upon by the officer in charge.

I therefore request you to remove the misuse on Leasehold land charge and oblige.

Thanking you

Yours faithfully

M. Grover 5/1/2026
Dr Mahesh Kumar Grover
A-33 to 36 Malka Ganj
Delhi-110007

Mobile 9810884590

email drmaheshgrover@gmail.com

Went to Sankalp Bhawan — met Mr. Rajeev Kumar Das Dy L&DO. He accepted the letter and signed it. As office not shifted from Neuman Bhawan

Attachment : Breach Notice No L&DO/PS3/242094/825 Dated 25.8.23

Dr. MD 15/1/26



Government of India
Ministry of Housing and Urban Affairs
Land and Development Office
Moulana Azad Road, Nirman Bhavan
New Delhi-110011

Breach Notice

25/8/23

No. L&DO/PS3/242094 1825	Report Date: 24-Aug-2023
Property ID: 44836	Inspection ID: 98007

To,
 Shri Mahesh Kumar Grover,
 35A/36A, A type
 Malka Ganj,
 Delhi 110007

Recd on 2/9/23

Sub: Notice to remedy the breaches for unauthorised construction / misuse of Plot/33A to 36A/33A-36A/MALKA GANJ - A-C, Delhi.

Dear Sir/Madam,

I am to refer to your Letter No. _____ dated _____ and to say that the Inspection of the above premises was conducted on 27-Jun-2023 and the following breaches were noticed at site by the Inspection team of this office :-

a) Misuse on Leased land

Sno.	Type	Floor	Breach Use	Location / Details	Length	Breadth	Area	Objection / Reason
1	completely done	ground	commercial	/a portion on gf is being used as clinic named dr grovers clinic run by dr m k grover m/a 10 ft 6 inch x 30 ft 3 inch + 15 ft 1 inch x 9 ft 10 inch = 465.93 sqft	0	0	465.93	yes

b) Unauthorised Construction on Leased Land

Sno.	Type	Floor	Breach Use	Location / Details	Length	Breadth	Area/WPL/B PL	Objection / Reason
1	completely done	ground	residential	/u/a front courtyard has been covered m/a 264 sqft	0	0	area:264sq feet wpl:0 bpl:264	yes
2	completely done	ground	residential	/u/a rear courtyard has been covered m/a 264 sqft	0	0	area:264sq feet wpl:0 bpl:264	yes
3	completely done	first	residential	/u/a rear courtyard has been covered m/a 264 sqft	0	0	area:264sq feet wpl:0 bpl:264	yes
4	completely done	second	residential	/u/a pucca construction has been done m/a 338.81 sqft	0	0	area:338.81sq feet wpl:338.81	yes

c) Enroachment on Government Land

Sno.	Type	Floor	Breach Use	Location / Details	Length	Breadth	Area	Objection / Reason
***	***	***	***	***	***	***	***	***

2. This breaches are in contravention of clause / clauses 1(vi) (vii) of the Lease Deed / Agreement for lease / Allotment letter / Terms of allotment.

3. Your are, therefore, required to remedy the breaches within 30 days from the date of reciept of this notice failing which action under clause of the Lease Deed will be taken against you without any further notice in the matter.

4. You are also liable to pay the damage / misuse charges (which will be intimated to you in due course) for having committed the breaches of the terms of the lease deed shown in Para-1 above for the period of their existence.

5. In case you have any point to clarify in connection with the above notice, you may kindly meet theundersigned by prior appointment on Telephone 23063613 between 2.00 P.M to 4.00 P.M. with a week from the date of receipt of this notice. It may, however, be understood that your ability to avail this oppurtunity of personal hearing / discussion will not be accepted as ground for not taking further action in the matter under the terms of the Lease Deed.

Remarks: ***

Yours faithfully,

neeraj
24/11/13

(NEERAJ BAKSHI)

DEPUTY L&DO-I

• Copy to :-

Accounts Section

neeraj
24/11/13

(NEERAJ BAKSHI)

DEPUTY L&DO-I

ED350075217IN IVR:6968350075217
SP MALKA GANJ SO <110007>
Counter No:4,27/05/2023,10:13
To:MR S.K SINGH,AE1/A E-11/80
PIN:110011, Nirman Bhawan SO
From:MAHESH KUMAR GROVER,A 33-36
Wt:10gms
Amt:17.70(Cash)Tax:2.70
<Track on www.indiapost.gov.in>
<Dial 18002666668> <Wear Masks, Stay Safe>

भारतीय डाक
India Post

of my Property No. A-3

of my Property

Delivered
checked
2/6

ED350075336IN IVR:6968350075336
SP MALKA GANJ SO <110007>
Counter No:4,27/05/2023,10:13
To:MR SUNIL KUMAR,MINISTRY HOUSING
PIN:110011, Nirman Bhawan SO
From:MAHESH KUMAR GROVER,A 33-36
Wt:10gms
Amt:17.70(Cash)Tax:2.70
<Track on www.indiapost.gov.in>
<Dial 18002666668> <Wear Masks, Stay Safe>

भारतीय डाक
India Post

Sat, May 27, 2023 at 1:52 AM

maresh grover <drmareshgrover@gmail.com>
To: sunil.singh84@nic.in

SPEED Post

To,

Mr. Sunil Kumar Singh
Dy L&DO
Ministry of Housing & Urban Affairs
Land & Dev. Office
Nirman Bhawan
New Delhi - 110011
mail: sunil.singh84@nic.in

Ref. No. L&DO/PS3/241902/391 dated 08.05.2023 Property ID : 44836

Subject: Inspection and subsequent Mutation of my Property No. A-33 to 36 (D/S) Malka Ganj, Delhi
- Compliance and Submissions

Sir,

Please refer to the above. I have complied with the directions and submit as under:

a) Misuse of Leased Land

In reply to point (a) I am to submit as under:

It is submitted that I am a consultant Medical Officer (PT) at WUS Health Centre, University of Delhi and am using part of my residence as a part-time clinic. Residence-cum-clinic is a residential activity as per law of the land. I am paying electricity, water and house tax as per residential status. I have already enclosed a photocopy of newspaper clipping citing the court order regarding the same for your kind reference. I am utilising two rooms and a veranda for my clinic measuring 480 sq. feet.

b) Unauthorised Construction on Leased Land

In reply to point (b) I am to submit as under :

- 1) Front courtyard is partly covered by asbestos sheet to the extent of 76 sq ft. Rest of the front courtyard is open to the sky. I have removed asbestos sheet from the car parking area.
- 2) Back open courtyard on GF has been covered only to the extent of 150 sq.ft. The staircase existed in the sanctioned plan.
- 3) Back open courtyard on FF has been covered only to the extent of 150 sq.ft. Please exclude the staircase area.

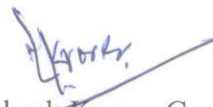
4) As regards SF, a room, toilet and store already existed in the sanctioned plan.

Sir, I am a senior citizen over 66 years and a law-abiding person. My application for mutation of the property has been pending since 25.02.2021. Kindly help me to expedite the same.

Kindly get the property re-inspected at the earliest.

Hoping for a favourable response.

Yours faithfully,


Mahesh Kumar Grover
A-33-36 (D/S) Malka Ganj,
Delhi - 110007
M : 9810884590
Email : drmaheshgrover@gmail.com

C/c
Mr. S.K. Singh AE-1/A-E-11/B.O. Govt of India, Ministry of Housing
and urban Affairs L & DO. Maulana Azad Road, Nirman Bhawan
N. Delhi - 110011.